

CHAPTER 23.

An Act to amend the provisions of the Government of India Act relating to the extension of the duration of a Governor's Legislative Council.
[28th June 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of provisions
of Govern-
ment of
India Act as
to duration
of Govern-
ors' legis-
lative
councils.

1. Proviso (b) to subsection (1) of section seventy-two B of the Government of India Act, which proviso enacts that the period of three years during which a governor's legislative council is to continue to exercise its functions may in special circumstances be extended by the governor for a period not exceeding one year shall have effect as if the words "for a period not exceeding one year" were omitted therefrom.

Short title,
construction
and printing.

2.—(1) This Act may be cited as the Government of India (Amendment) Act, 1933.

9 & 10
Geo. 5.
c. 101.

(2) Subsection (2) of section forty-five of the Government of India Act, 1919 (which relates to the effect of amendments to, and the printing of, the Government of India Act) shall have effect as if herein re-enacted and in terms made applicable to the amendments effected by this Act.

CHAPTER 24.

An Act to amend the law relating to solicitors by providing for the making and enforcement of rules as to the keeping of accounts for clients' moneys and other matters of professional conduct.
[28th June 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

1. The Council of the Law Society shall make rules— Council of Law Society to make rules as to certain matters.

- (a) as to the opening and keeping by solicitors of accounts at banks for clients' moneys; and
- (b) as to the keeping by solicitors of accounts containing particulars and information as to moneys received, held or paid by them, for or on account of their clients; and
- (c) empowering the Council to take such action as may be necessary to enable them to ascertain whether or not the rules are being complied with;

and may, if they see fit, make rules for regulating in respect of any other matter the professional practice, conduct, and discipline of solicitors :

Provided that rules made under this section shall not come into operation until they have been approved by the Master of the Rolls.

2.—(1) If a solicitor fails to comply with any of the rules made under the preceding section, any person may make a complaint in respect of that failure to the disciplinary committee. Consequences of failure to comply with rules.

(2) The provisions of Part I of the Solicitors Act, 1932, shall apply in relation to complaints under this section as they apply in relation to applications to the committee under the said Part I: 22 & 23 Geo. 5. c. 37.

Provided that in addition to the powers conferred on the committee by subsection (2) of section five of the said Act the committee and, upon appeal, the High Court shall have power to impose on the solicitor a penalty not exceeding five hundred pounds, and any penalty so imposed shall be forfeit to His Majesty.

3. Section thirty-eight of the Solicitors Act, 1932, (which gives a discretion to the Registrar of Solicitors to refuse to issue certificates in special cases) shall, in addition to the cases mentioned therein, apply to the case where a solicitor applies for a certificate to practise without having paid any penalty imposed upon him under the last preceding section, or any costs ordered to be paid by him under that section or under Part I of the Solicitors Act, 1932. Discretion of Registrar to refuse practising certificate in certain cases.

Saving for
certain
public
officers.

4.—(1) In the case of a solicitor employed as a public officer, rules made under paragraph (a) or paragraph (b) of section one of this Act shall not apply to him so far as regards moneys received, held, or paid by him in the course of his employment as such public officer.

(2) In this section the expression “public officer” means an officer whose remuneration is defrayed out of—

- (a) moneys provided by Parliament; or
- (b) the revenues of the Duchy of Cornwall or the Duchy of Lancaster; or
- (c) the common fund of the Ecclesiastical Commissioners; or
- (d) the general fund of Queen Anne’s Bounty; or
- (e) the fund of the Electricity Commissioners; or
- (f) the Forestry Fund; or
- (g) the Development Fund; or
- (h) any other revenues or fund for the time being prescribed by the Treasury.

Saving for
certain
county
officers.

5.—(1) Rules made under paragraph (a) or paragraph (b) of section one of this Act shall not apply to a solicitor who holds an office to which this section applies and who does not engage in private practice as a solicitor, and, in the case of a solicitor who holds such an office and who engages in private practice as a solicitor, such rules shall not apply to him except so far as regards moneys received, held, or paid by him in the course of such private practice.

(2) The offices to which this section applies are the offices of clerk of the peace of a county, deputy clerk of the peace of a county, clerk of a county council, deputy clerk of a county council, clerk to the visiting committee of a mental hospital, and clerk of the lieutenancy, and any other office connected with the administration of the county to which a person has, whilst holding any of the offices above mentioned, been appointed by the court of quarter sessions or the county council or a joint committee of the court of quarter sessions and the county council, or a committee of either of them.

Saving for
certain
officers
of local

6.—(1) Rules made under paragraph (a) or paragraph (b) of section one of this Act shall not apply to any solicitor who is in whole-time employment as an officer of

a local authority or of statutory undertakers and does not engage in private practice as a solicitor.

authorities
and of
statutory
under-
takers.

(2) In this section—

the expression “local authority” means any body having power to levy a rate, as defined for the purposes of the Rating and Valuation Act, 1925, or to issue a precept to a rating authority; and

15 & 16
Geo. 5. c. 90.

the expression “statutory undertakers” means any person authorised by or under an Act of Parliament, or an order having the force of an Act of Parliament, to construct, work, or carry on any railway, canal, inland navigation, dock, harbour, tramway, gas, electricity, water, or other public undertaking.

7. This Act shall not apply to the Solicitor of the City of London.

Saving for
Solicitor to the
City of London.

8.—(1) Subject to the provisions of this section no bank shall, in connection with any transaction on any account of any solicitor kept with it or with any other bank (other than an account kept by a solicitor as trustee for a specified beneficiary) incur any liability or be under any obligation to make any enquiry or be deemed to have any knowledge of any right of any person to any money paid or credited to any such account which it would not incur or be under or be deemed to have in the case of an account kept by a person entitled absolutely to all the money paid or credited to it:

Relief to
banks.

Provided that nothing in this subsection shall relieve a bank from any liability or obligation under which it would be apart from this Act.

(2) Notwithstanding anything in the preceding subsection, a bank at which a solicitor keeps an account for clients' moneys shall not, in respect of any liability of the solicitor to the bank, not being a liability in connection with that account, have or obtain any recourse or right, whether by way of set off, counter claim, charge, or otherwise, against moneys standing to the credit of that account:

Provided that nothing in this subsection shall deprive a bank of any right existing at the time when the first rules made under this Act come into operation.

Short title,
construc-
tion, com-
mencement
and extent.

9.—(1) This Act may be cited as the Solicitors Act, 1933.

(2) The Solicitors Act, 1932, and this Act shall be construed together as one Act and may be cited together as the Solicitors Acts, 1932 and 1933.

(3) This Act shall come into operation on the first day of January, nineteen hundred and thirty-four.

(4) This Act shall not extend to Scotland or to Northern Ireland.

CHAPTER 25.

An Act to amend the law relating to Pharmacy and Poisons and for purposes consequential on such amendment. [28th June 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

PHARMACY.

Membership
of Pharma-
ceutical
Society.

1.—(1) Every person registered as a pharmacist, shall, by virtue of being so registered, be a member of the Pharmaceutical Society of Great Britain (in this Act referred to as "the Society"), and the provisions of the Pharmacy Acts and of the Charter of Incorporation of the Society, in so far as they provide that persons shall become members of the Society by election, shall cease to have effect.

(2) Every member of the Society shall, in addition to the fees payable on registration as a pharmacist, pay such fee (in this section referred to as "a retention fee") as may be prescribed by byelaws, but not exceeding two pounds, in respect of the retention of his name on the register in any year subsequent to the year in which he first becomes a member of the Society, or, in the case of a person who was a member of the